

REPLY NOTICE & COUNTER-CLAIM BY RESPONDENT

Defective RCC & finishing works, delay, and right of set-off

RESPONDENT (PARTY B)	M/s Greenfield Developers Pvt. Ltd., Greenfield House, Wakad, Pune
CLAIMANT (PARTY A)	M/s Shivalik Constructions Pvt. Ltd., Pune
COUNTER-CLAIM	■2,31,00,000 (defective work, LD, third-party remedial costs)
POSITION	Net claim of Party B against Party A: ■44,50,000 after set-off

1. PRELIMINARY OBJECTIONS

The respondent denies that it is liable to pay the certified amounts, and in any event, asserts a right of set-off. The respondent's preliminary objections are: (i) the claimant has not completed the works within the stipulated period and has delayed the project by over 7 months; (ii) the alleged 'certificates' relied upon (Exhibits A-6 to A-8) were issued by the claimant's own consultant, not the employer's architect, and are therefore not binding; (iii) significant defective works have been detected by an independent structural audit; and (iv) the respondent has validly withheld payment pending rectification, which is permitted under Clause 13.8 of the G.C.C.

2. DEFECTIVE WORKS & STRUCTURAL CONCERNS

The respondent engaged M/s NavNirmiti Consultants (independent structural auditor) whose report dated 10-Jan-2026 found: (i) honeycombing and spalling in 14 RCC columns on floors 4 to 9 due to improper vibration and curing; (ii) cover to reinforcement found deficient (32 mm against the specified 40 mm) in several beams; (iii) water seepage in the basement because of improper waterproofing at the construction joints; and (iv) cracked external plaster on the south facade. The estimated cost of remedial works is ■1,34,00,000, which is claimed from the claimant.

3. DELAY & LIQUIDATED DAMAGES

The works were to be completed by 30-Apr-2026 but, as of the date of this reply, structural and finishing works are incomplete and the project is behind schedule by more than 7 months. Under Clause 10.3, the employer is entitled to liquidated damages at 0.1% of the contract value (■38,50,000) per week of delay, capped at 5% (■1,92,50,000). The respondent claims LD of ■1,92,50,000, computed up to the date of actual or likely completion.

4. COUNTER-CLAIMS RAISED (PARTY B)

Sr.	Head of Counter-Claim	Amount (■)
1	Cost of remedial works (structural + finishing) as per audit	1,34,00,000
2	Liquidated damages for delay (capped at 5%)	1,92,50,000
3	Third-party scaffolding & re-curing costs incurred	18,50,000
4	Total counter-claim	3,45,00,000
5	Less: admitted dues of claimant (without prejudice)	(1,86,50,000)
6	Net claim of respondent	1,58,50,000

5. SETTLEMENT OUTLOOK & INVITATION

The respondent remains open to a mediated settlement that (i) provides for a joint rectification plan and sharing of remedial costs, and (ii) adjusts the certified dues against the liquidated damages and defect costs. The respondent invites the claimant to a mediation session with a jointly appointed mediator and proposes that an agreed independent engineer certify the defective works. Without prejudice, the respondent is willing to pay the net difference, if any, after the audit, within 45 days of a mediated settlement agreement.

For M/s Greenfield Developers Pvt. Ltd.

K. Mehta, Director

Through: Adv. Prashant Kulkarni

Issued at: Pune

Dated: 26-Feb-2026

Registered post / e-mail